CITY OF WALNUT CREEK
RESOLUTION NO.

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF WALNUT CREEK SUBMITTING A MEASURE TO THE VOTERS OF WALNUT CREEK AT THE NOVEMBER 3, 2026 ELECTION ENTITLED "THE WALNUT CREEK SENIOR HOUSING TRANSIT VILLAGE INITIATIVE" AMENDING THE WALNUT CREEK GENERAL PLAN, THE NORTH DOWNTOWN SPECIFIC PLAN, AND THE WALNUT CREEK ZONING CODE/ZONING MAP TO CREATE A NEW MIXED USE-RESIDENTIAL SENIOR & COMMERCIAL (MU-RSC) ZONING DISTRICT OVER 2.4 ACRES OF LAND LOCATED AT THE NORTHEAST CORNER OF NORTH CALIFORNIA BOULEVARD AND YGNACIO VALLEY ROAD TO ALLOW FOR SENIOR HOUSING AND COMPATIBLE COMMERCIAL USES AND ESTABLISHING RELATED DENSITY AND DEVELOPMENT STANDARDS; REQUESTING THAT THE CONTRA COSTA COUNTY BOARD OF SUPERVISORS CONSENT TO THE CONSOLIDATION OF THIS ELECTION WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THE SAME DATE; DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS; AND SPECIFYING PROCEDURES RELATED TO SUBMISSION OF BALLOT ARGUMENTS

WHEREAS, on March 16, 2026, a Notice of Intent to Circulate Petition was submitted to the City of Walnut Creek ("City") for the "Walnut Creek Senior Housing Transit Village Initiative" ("Initiative");

WHEREAS, the Initiative amends the Walnut Creek General Plan including the Housing Element, the North Downtown Specific Plan, the Zoning Ordinance in the Walnut Creek Municipal Code, and the Zoning Map to create a new "Mixed Use – Residential Senior & Commercial (MU-RSC)" zoning district applicable to a 2.4 acre parcel located at the northeast corner of North California Boulevard and Ygnacio Valley Road (the "Initiative Area");

WHEREAS, the proposed amendments would allow the Initiative Area to be redeveloped in the future with senior housing and commercial uses compatible with senior housing, replacing the site's current office development;

WHEREAS, on March 25, 2026, the City Attorney prepared and City Clerk provided to the initiative proponents the ballot title and summary for the measure and on April 3, 2026, the proponents began to collect signatures related to the Initiative;

WHEREAS, on April 21, 2026, the Walnut Creek City Council ("City Council") ordered an Elections Code section 9212 Report for the Initiative ("Section 9212 Report");

WHEREAS, on May 4, 2026, proponents for the Initiative filed with the City Clerk initiative petitions related to Initiative. On May 5, 2026, the City Clerk delivered the Initiative petitions to the Contra Costa County Registrar of Voters for signature verification;

WHEREAS, on June 26, 2026, the County Registrar of Voters concluded its verification process and certified to City Council that the petition included 5,000 valid signatures out of

7,248 signatures collected of registered voters within Walnut Creek, and that the number of valid signatures exceeds the required number of signatures necessary under the Elections Code, which is 4,987 equating to 10 percent of Walnut Creek registered voters;

WHEREAS, on July 21, 2026, the City Council received and reviewed the Section 9212 Report and accepted the certification of the County Registrar of Voters as to the sufficiency of the Initiative petition;

WHEREAS, pursuant to Elections Code section 9215, the City Council may submit the Initiative to the voters without alteration;

WHEREAS, a General Municipal Election is scheduled to be held in the City of Walnut Creek on November 3, 2026.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Walnut Creek as follows:

Section 1. Placing a Measure on the ballot for the Regular Municipal Election.

Pursuant to Elections Code Section 9215 the City Council hereby places on the ballot at the November 3, 2026 General Municipal Election in the City of Walnut Creek the question of whether the Walnut Creek Senior Housing Transit Village Initiative shall be adopted? This measure shall be designated by letter by the Contra Costa County Registrar of Voters. Pursuant to Election Code Section 10400 *et. seq.*, the election for this measure shall be consolidated with the statewide general election to be held on the same date.

Section 2. Description of the Question Placed on the Ballot.

The amendments to the Walnut Creek General Plan including the Housing Element, the North Downtown Specific Plan, the Zoning Ordinance in the Walnut Creek Municipal Code, and the Zoning Map, to be approved by the voters pursuant to Section 1 is set forth in Exhibit A hereto. The Board of Supervisors of the County of Contra Costa is requested to order the County Registrar of Voters to set forth in the voter information portion of all sample ballots to be mailed to the qualified electors of the City the full text of the Initiative and to mail with the sample ballots to the electors printed copies of the full text of the Initiative, together with the primary arguments and rebuttal arguments (if any) for and against the measure, and to provide voter ballots for the election for use by qualified electors of the City who are entitled thereto in the manner provided by law. The proposed Initiative shall be submitted to the voters on the ballot in the form of the following question, which question shall require the approval of a majority of qualified electors casting votes:

Shall the measure amending the City of Walnut Creek General Plan, the North Downtown Specific Plan, and the Municipal Code to redesignate a 2.4 acre site at the northeast corner of North California Boulevard and Ygnacio Valley Road from office uses to mixed use residential uses, and to create a new Mixed Use Residential Senior & Commercial zoning district to limit allowable uses on the site to multifamily senior housing	**YES**	
	NO	

(primarily 55 years of age or older) and commercial uses compatible with senior housing, be adopted?		

Section 3. The City Clerk is authorized, instructed and directed to work with the Contra Costa County Registrar of Voters as needed in order to properly and lawfully conduct the election. The ballots to be used in the election shall be in form and content as required by law. The Contra Costa County Registrar of Voters is authorized to canvass the returns of the general municipal election. In all particulars not recited in this Resolution, the election shall be held and conducted as provided by law for holding municipal elections.

Section 4. The Board of Supervisors is requested to instruct the Contra Costa County Registrar of Voters to provide such services as may be necessary for the holding of the consolidated election. The election shall be held in all respects as if there were only one election. The City of Walnut Creek acknowledges that the consolidated election will be held and conducted in the manner prescribed in Elections Code Section 10418. The City of Walnut Creek recognizes that the County will incur additional costs because of this consolidation and agrees to reimburse the County for those costs. The City Manager is hereby authorized and directed to expend the necessary funds to pay for the City's cost of placing the measure on the election ballot.

Section 5. The polls for the election shall be open at 7:00 a.m. on the day of the election and shall remain open continuously from that time until 8:00 p.m. that same day, when the polls shall be closed, except as provided in Section 14401 of the Elections Code of the State of California. The notice of the time and place of holding the election is hereby given, and the City Clerk is authorized to give further notice of the election, as required by law.

Section 6. Establishment of the Deadline for Argument Submission; Designation of Preferences if Multiple Submissions.

Pursuant to Elections Code section 9286 the City Clerk has established August 19, 2026, 5:00 p.m. as the deadline for the submission of arguments in favor of and arguments against the question. If more than one argument for or more than one argument against the question is submitted, the priorities set forth in Elections Code section 9287 shall control. Primary arguments shall not exceed three hundred (300) words and shall be signed by not more than five persons.

Section 7. Provision for Rebuttal Arguments.

Pursuant to Elections Code section 9285(b) the City Council hereby adopts the provisions of Elections Code section 9285(a) allowing the filing of rebuttal arguments. The deadline for filing rebuttal arguments shall be 5:00 p.m., August 24, 2026. Rebuttal arguments shall not exceed two hundred fifty (250) words and shall be signed by not more than five persons; those persons may be different persons than the persons who signed the primary arguments.

Section 8. Pursuant to California Elections Code Section 9282, Councilmembers ____ and _____are hereby authorized to submit a written argument in favor or in opposition of the proposed measure, not to exceed three hundred (300) words, on behalf of the City Council. At the discretion of Councilmembers _____ and _____, the argument may also be signed by

other members of the City Council or bona fide associations or by individual voters who are eligible to vote on the measure, for a total of five signatures. In the event that an argument is filed for or against the measure, Councilmembers _____ and _____ are also authorized to submit a rebuttal argument consistent with the primary ballot argument they authored on behalf of the City Council, which may also be signed by members of the City Council or bona fide associations or by individual voters who are eligible to vote on the measure, for a total of five signatures, which may be different from those who signed the primary argument.

Section 9. Impartial Analysis

Pursuant to California Elections Code Section 9280, the City Council hereby directs the City Clerk to transmit a certified copy of the measure to the City Attorney. The City Attorney shall prepare an impartial analysis of the measure, not to exceed five hundred (500) words in length, showing the effect of the measure on the existing law and the operation of the measure, and file the impartial analysis with the City Clerk by August 19, 2026.

Section 10. Pursuant to California Elections Code Section 9285, when the City Clerk has selected the arguments for and against the measure, which will be printed and distributed to the voters, the City Clerk shall send copies of the argument in favor of the measure to the authors of the argument against, and copies of the argument against to the authors of the argument in favor. Rebuttal arguments shall be printed in the same manner as the primary arguments. Each rebuttal argument shall immediately follow the primary argument, which it seeks to rebut.

Section 11. The City Clerk is directed to file certified copies of this Resolution with the Board of Supervisors and the Registrar of Voters of the County of Contra Costa.

Section 12. The jurisdictional boundaries of the City of Walnut Creek have not changed since the last general municipal election.

Section 13. This Resolution shall become effective immediately upon its passage and adoption.